

Riyasat Hussain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 December 2012 · WRIT - C No. - 67413 of 2012 · **Writ dismissed for para 6.5 alternative remedy and unexplained laches.**

HEADNOTE

A consumer disputing an electricity bill must first object under para 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer. A writ filed two years after the disputed bill, without adequate explanation of delay, is dismissed both for alternative remedy and for unexplained laches.

FACTUAL SUMMARY

The petitioner had in 2006 challenged the correctness of an electricity bill. That writ was disposed of on 26 May 2006 with a direction to file a representation. He made a representation, which was not decided, and old dues continued to appear on subsequent bills. By this petition he challenged the bill dated 28 August 2010, which also demanded arrears. The petition was filed about two years after that bill was received.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-objection

HOLDING

A consumer who challenges the correctness of an electricity bill must raise objections under para 6.5 of the U.P. Electricity Supply Code, 2005 and seek redressal from the concerned Executive Engineer; a writ filed two years after the disputed bill without adequately explaining the delay is dismissed both for that alternative remedy and for unexplained laches. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 28.8.2010 AND THE UNDECIDED REPRESENTATION

not examined on merits; petition dismissed for para 6.5 alternative remedy and unexplained delay ¶ 1